



IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

205

CRM-M No.32728 of 2026

DATE OF DECISION : 11th JUNE, 2026

Gagandeep Singh @ Gagan

.... Petitioner

Versus

State of Punjab

.... Respondent

CORAM : HON'BLE MR. JUSTICE ROHIT KAPOOR

* * * *

Present : Mr. Amit Gupta, Advocate for the petitioner.

Ms. Gagandeep Kaur, DAG, Punjab.

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ROHIT KAPOOR, J. (Oral)

1. The present petition has been filed under Section 483 of the Bharatiya Nagarik Suraksha Sanhita (439 Cr.P.C.) seeking regular bail in case FIR No.56 dated 14.03.2026 under Sections 109 (307 IPC), 115(2) (323 IPC), 61(2) (120-B IPC), 351(2) (503 IPC), 191 (3) (148 IPC), 190 (149 IPC) BNS, 2023 registered at Police Station Chheharta, District Police Commissionerate, Amritsar.

2. The case of the prosecution is that the present petitioner along with other co-accused attacked the complainant and his friend Vishal and caused injuries to them with their respective weapons. It is alleged that at the time of occurrence, the present petitioner was armed with a baseball bat and he gave three blows of the same, which struck the leg of the complainant. It is further alleged that all the accused committed the crime with a common object.



3. Learned counsel for the petitioner contends that the role attributed to the present petitioner does not fall within the ambit of offence under Section 109 of BNS (307 IPC). The injuries attributed to the petitioner are simple in nature and on non-vital part of the body. It is further pointed out that in order to resolve any misunderstanding between the parties, a compromise deed has been executed on 24.03.2026 (Annexure P-2) and the complainant has no objection, whatsoever, if the petitioner is granted concession of bail and the proceedings emanating from the FIR in question are quashed.

4. Learned State counsel has produced the custody certificate dated 10.06.2026, which is taken on record. Perusal of the same would show that the petitioner has been under incarceration for approximately two months.

5. At this stage, Mr. Amandeep Singh, Advocate has appeared on behalf of the complainant and filed his power of attorney. The Registry is directed to make the necessary correction in the memorandum of parties and add the name of the complainant as respondent No.2

6. Heard learned counsel for the parties and perused the case file.

7. Keeping in view the peculiar facts and circumstances of the present case, wherein the petitioner has not been accused of causing any grievous injury; does not have any past criminal antecedents; parties have entered into a compromise to resolve their differences and further keeping in view the principle that bail is the rule and jail is the exception,



this court deems it appropriate to grant concession of bail to the petitioner.

8. Consequently, without expressing any opinion on the merits of the case, the instant petition is *allowed*. The petitioner is ordered to be released on regular bail on his furnishing requisite bail bonds, surety bonds to the satisfaction of the trial Court/Duty Magistrate/Chief Judicial Magistrate concerned.

11TH JUNE, 2026
‘raj’

(ROHIT KAPOOR)
JUDGE

<i>Whether speaking/reasoned:</i>	<i>Yes</i>	<i>No</i>
<i>Whether Reportable:</i>	<i>Yes</i>	<i>No</i>